

Brussels, January 18 – European Commissioner for Justice Didier Reynders participated in the plenary session. He presented to the Committee a draft Decision on the adequacy of the data protection framework between the EU and the US and exchanged views with its members. The Committee is currently working on its opinion on the draft decision, which will be completed in the coming weeks.

The European Data Protection Board has adopted a report on the findings of its first coordinated enforcement action, which focused on the use of cloud services in the public sector. The European Data Protection Board emphasizes the need for public authorities to act fully in compliance with the General Data Protection Regulation and includes recommendations for the public sector when using cloud products or services. Additionally, a list of measures that data protection authorities have already taken in the area of cloud computing is available.

Andrea Jelinek, Chair of the European Data Protection Board, stated: “The Coordinated Enforcement Framework (CEF) examines deeper methods of cooperation among data protection authorities to achieve better efficiency and consistency. Across Europe, public sector organizations are turning to cloud services and facing challenges in obtaining services and products compliant with the General Data Protection Regulation. Personal data processed by public services must be handled with the utmost care, especially when processed by a third party. The European Data Protection Board's report on the CEF for 2022 provides a useful benchmark for this, and I believe it will become an important reference point for public authorities dealing with the procurement of cloud services compliant with the General Data Protection Regulation.”

During 2022, 22 data protection authorities across the EEA (including the EDPS) initiated coordinated investigations into the use of cloud services in the public sector.

Throughout the EEA, including European institutions, a total of around 100 public authorities were covered, encompassing a wide range of sectors (such as healthcare, finance, taxation, education, consumers, and IT service providers).

The CEF is a key measure of the European Data Protection Board within its strategy for the period 2021-2023, aimed at simplifying enforcement and cooperation among supervisory authorities. The activities of the CEF in 2023 will relate to the appointment and role of Data Protection Officers (DPOs).

Additionally, the European Data Protection Board has adopted a report on the work of the working group on the design of banners (pop-up windows) for accepting/rejecting cookies, which was established in September 2021 to coordinate responses to complaints filed by the NGO NOYB with several data protection authorities from the EEA. The working group aimed to promote cooperation, information exchange, and best practices among data protection authorities, which was crucial for ensuring a consistent approach to cookie banners across the EEA. In the report, data protection authorities agreed on a common denominator in their interpretation of the applicable provisions of the e-Privacy Directive and the General Data Protection Regulation on issues such as rejection buttons, pre-checked boxes, banner design, or withdrawal icons.